

भारत का राजपत्र
The Gazette of India

असाधारण
EXTRAORDINARY
भाग II—खण्ड 1
PART II—Section 1
प्राधिकार से प्रकाशित
PUBLISHED BY AUTHORITY

सं. 19] नई दिल्ली, शुक्रवार, अप्रैल, 24, 1998 / वैसाख 4, 1920
No. 19] NEW DELHI, FRIDAY, APRIL, 24, 1998 / VAISAKHA 4, 1920

इस भाग में भिन्न पृष्ठ संख्या दी जाती है जिससे कि यह अलग संकलन के रूप में रखा जा सके।
Separate paging is given to this Part in order that it may be filed as a separate compilation.

MINISTRY OF LAW AND JUSTICE
(Legislative Department)

New Delhi, the 24th April, 1998/Vaisakha 4, 1920 (Saka)

**THE HIGH COURT AND SUPREME COURT JUDGES (CONDITIONS
OF SERVICE) AMENDMENT ORDINANCE, 1998**

No. 11 OF 1998

Promulgated by the President in the Forty-ninth Year of the Republic of
India.

An Ordinance further to amend the High Court Judges (Conditions of Service)
Act, 1954 and the Supreme Court Judges (Conditions of Service) Act,
1958.

WHEREAS Parliament is not in session and the President is satisfied that circumstances
exist which render it necessary for him to take immediate action;

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of article 123 of the
Constitution, the President is pleased to promulgate the following Ordinance:---

CHAPTER I

PRELIMINARY

1. (1) This Ordinance may be called the High Court and Supreme Court Judges
(Conditions of Service) Amendment Ordinance, 1998.

(2) It shall be deemed to have come into force on the 1st day of January, 1996.

Short title
and com-
mencement

CHAPTER II

AMENDMENT OF THE HIGH COURT JUDGES (CONDITIONS OF SERVICE) ACT, 1954

Amendment of
long title

2. In the long title to the High Court Judges (Conditions of Service) Act, 1954, (hereinafter referred to as the High Court Judges Act), for the words "certain conditions of service", the words "salaries and certain conditions of service" shall be substituted.

28 of 1954

Amendment of
section 1.

3. In section 1 of the High Court Judges Act, for the brackets and words "(Conditions of Service)", the brackets and words "(Salaries and Conditions of Service)" shall be substituted.

Amendment of
Chapter III.

4. In Chapter III of the High Court Judges Act,—

(a) for the heading "Pensions", the heading "Salaries and Pensions" shall be substituted; and

(b) after the heading as so substituted and before section 14, the following section shall be inserted, namely:—

Salaries of the
Judges

"13A. (1) There shall be paid to the Chief Justice of a High Court by way of salary thirty thousand rupees per mensem.

(2) There shall be paid to a Judge of a High Court by way of salary twenty-six thousand rupees per mensem."

CHAPTER III

AMENDMENT OF THE SUPREME COURT JUDGES (CONDITIONS OF SERVICE) ACT, 1958

Amendment of
long title

5. In the long title to the Supreme Court Judges (Conditions of Service) Act, 1958, (hereinafter referred to as the Supreme Court Judges Act), for the words "certain conditions of service", the words "salaries and certain conditions of service" shall be substituted.

41 of 1958

Amendment of
section 1

6. In section 1 of the Supreme Court Judges Act, for the brackets and words "(Conditions of Service)", the brackets and words "(Salaries and Conditions of Service)" shall be substituted.

Amendment of
Chapter III.

7. In Chapter III of the Supreme Court Judges Act,—

(a) for the heading "Pensions", the heading "Salaries and Pensions" shall be substituted; and

(b) after the heading as so substituted and before section 13, the following section shall be inserted, namely:—

Salaries of the
Judges.

"12A. (1) There shall be paid to the Chief Justice of India by way of salary thirty-three thousand rupees per mensem.

(2) There shall be paid to a Judge of the Supreme Court by way of salary thirty thousand rupees per mensem."

CHAPTER IV

TRANSITIONAL PROVISION

8. The difference of salary payable to a Judge of a High Court under the High Court Judges Act or a Judge of the Supreme Court under the Supreme Court Judges Act, as amended by this Ordinance, and salary payable to such Judge but for this Ordinance, shall be paid in two instalments, the first instalment being five thousand rupees plus fifty per cent of the balance of such difference to be paid as early as may be practicable, and the second instalment to be paid within such period as may be decided by the Central Government.

Arrears

K. R. NARAYANAN,
President.

RAGHBIR SINGH,
Secy. to the Govt. of India.

IndiaCode